

Constitutional Law – I
LL.B. Semester I – Paper III
Unit-wise Important Questions

5 Marks • 10 Marks (Case Law with Illustrations) • 15 Marks

Unit	5 Marks	10 Marks (case law)	15 Marks
Unit I	8	2	4
Unit II	10	4	4
Unit III	12	5	4
Unit IV	12	4	4
Unit V	10	3	4

How to use: Part A gives short-answer questions, Part B gives case-law questions with a model answer outline (principle, case table and an illustration), and Part C gives long-answer questions with the key points to cover. Verify citations against the law report or your prescribed readings before quoting them in an examination.

Unit-I: Meaning of Constitution and Framing of the Indian Constitution

Part A — 5 Marks Questions

1. Explain the meaning and significance of a Constitution.
2. Explain the classification of constitutions (written/unwritten, rigid/flexible, federal/unitary).
3. Trace the historical background of the Indian Constitution under the Government of India Act, 1919.
4. Explain the salient features of the Government of India Act, 1935.
5. Explain the composition of the Constituent Assembly of India.
6. Explain the role of the Drafting Committee of the Constituent Assembly.
7. Write a short note on the Objectives Resolution moved by Jawaharlal Nehru.
8. Explain the significance of Dr. B.R. Ambedkar's contribution to the framing of the Constitution.

Part B — 10 Marks Questions (Case Law with Illustrations)

Q1. Explain the doctrine of basic structure and the role of the Constituent Assembly's design in evolving it, with reference to *Kesavananda Bharati v. State of Kerala*. Illustrate.

Principle: Although the Constituent Assembly gave Parliament a wide power to amend the Constitution under Article 368, the courts have held that this power cannot be used to destroy the essential or basic features that the founding fathers built into the constitutional design.

Kesavananda Bharati v. State of Kerala	
Citation	(1973) 4 SCC 225
Facts	The head of a religious institution challenged Kerala land reform legislation and, in the course of the case, the validity of several constitutional amendments, including the 24th, 25th and 29th Amendments, was examined by a 13-judge bench.
Issue	Does Parliament's power to amend the Constitution under Article 368 extend to altering or destroying its basic structure?
Held	By a majority, the Supreme Court held that Parliament has wide powers to amend any part of the Constitution, including Fundamental Rights, but this power does not extend to altering the 'basic structure' or framework of the Constitution, such as its democratic character, separation of powers, federalism, judicial review and the rule of law.
Significance	The most significant constitutional decision in India, protecting the constitutional scheme designed by the Constituent Assembly from being undone by ordinary amendment.

Illustration

If Parliament were to pass a constitutional amendment abolishing judicial review of legislation altogether, courts would strike it down as destroying the basic structure, even though the amendment followed the correct procedure under Article 368, because the power to amend does not include the power to destroy the Constitution's identity.

Q2. Explain the transition from the Government of India Act, 1935 to the Constitution of India with reference to the Constituent Assembly's adaptation of that Act's federal and administrative scheme. Illustrate with the case In Re: The Berubari Union.

Principle: The Government of India Act, 1935 supplied much of the administrative, federal and emergency-power framework later adapted into the Constitution, though the Constituent Assembly reworked it into a democratic, rights-based document.

In Re: The Berubari Union and Exchange of Enclaves	
Citation	AIR 1960 SC 845 (Presidential Reference under Article 143)
Facts	A dispute arose over the transfer of the Berubari Union territory to Pakistan under the Nehru-Noon Agreement, raising the question whether such a transfer of Indian territory required a constitutional amendment.
Issue	Can the Preamble or an ordinary law be used to cede Indian territory, and is a constitutional amendment necessary?
Held	The Supreme Court held that a cession of Indian territory could not be effected by an ordinary law and required an amendment of the Constitution under Article 368, read with Article 3, illustrating how post-Independence India, unlike under the 1935 Act (where territory was a matter of British Crown prerogative), treats territorial questions as core constitutional issues requiring the Assembly's/Parliament's constituent process.
Significance	Clarified the procedure for altering India's territory and underscored that the Preamble, though part of the constitutional scheme framed by the Assembly, is not by itself a source of substantive power.

Illustration

If the Government today wished to transfer a small border village to a neighbouring country under a boundary settlement, it would need to pass a constitutional amendment under Article 368 (not merely an executive agreement or ordinary legislation), following the Berubari precedent.

Part C — 15 Marks Questions

1. **Discuss the meaning and significance of a Constitution. Explain the various classifications of constitutions with suitable examples.**

Key points: Definition; constitutionalism; written/unwritten; rigid/flexible; federal/unitary; parliamentary/presidential; examples (UK, USA, India); significance for limited government.

2. **Trace the historical evolution of the Indian Constitution from the Government of India Act, 1858 to the Government of India Act, 1935.**

Key points: Regulating Act 1773; Charter Acts; GoI Act 1858; Indian Councils Acts 1861/1892/1909; GoI Act 1919 (dyarchy); GoI Act 1935 (federation, provincial autonomy); significance for later Constitution.

3. **Discuss the composition and working of the Constituent Assembly of India and the role of the Drafting Committee in framing the Constitution.**

Key points: Cabinet Mission Plan 1946; composition and election; committees; Objectives Resolution; Drafting Committee under Dr. Ambedkar; debates; time taken; adoption on 26 November 1949; commencement 26 January 1950.

4. **Discuss the doctrine of basic structure of the Constitution and its significance in preserving constitutionalism in India.**

Key points: Golaknath; Kesavananda Bharati; Indira Nehru Gandhi v. Raj Narain; Minerva Mills; features held to be basic structure; effect on Article 368; judicial review as a safeguard.

Unit-II: Nature and Salient Features, Preamble, Citizenship and Article 13

Part A — 5 Marks Questions

1. Explain whether the Indian Constitution is federal or unitary in nature.
2. Explain the salient features of the Indian Constitution.
3. Explain the significance of the Preamble to the Constitution of India.
4. Is the Preamble a part of the Constitution? Explain.
5. Explain the provisions relating to the Union and its territories (Articles 1-4).
6. Explain the modes of acquisition and termination of Indian citizenship under the Citizenship Act, 1955.
7. Explain the definition of 'State' under Article 12.
8. Explain the doctrine of judicial review.
9. Explain the effect of Article 13 on laws inconsistent with Fundamental Rights.
10. Explain the doctrine of severability.

Part B — 10 Marks Questions (Case Law with Illustrations)

Q1. Explain whether the Preamble is a part of the Constitution and whether it can be amended, with reference to Berubari Union and Kesavananda Bharati. Illustrate.

Principle: The Preamble declares the objectives of the Constitution. Its status as a part of the Constitution, and hence its amendability, has evolved through judicial interpretation.

In Re: The Berubari Union	
Citation	AIR 1960 SC 845
Facts	The Supreme Court, in the reference discussed in Unit I, also considered whether the Preamble was part of the Constitution and could be used to interpret or expand its provisions.
Issue	Is the Preamble a part of the Constitution, and can it control the meaning of substantive provisions?
Held	The Court held that the Preamble is not a part of the Constitution and, though it shows the general purpose behind the provisions, it cannot override the clear language of a substantive provision nor be a source of any substantive power.
Significance	Held the Preamble to be outside the Constitution for the purpose of its provisions, though relevant as an interpretive aid.

Kesavananda Bharati v. State of Kerala	
Citation	(1973) 4 SCC 225
Facts	The 13-judge bench also examined the status of the Preamble while deciding the basic structure question.
Issue	Is the Preamble part of the Constitution and can it be amended?
Held	The majority held that the Preamble is part of the Constitution and can be amended under Article 368, but any amendment must not damage the basic elements/fundamental features reflected in the Preamble, such as sovereignty, democracy and the republic.
Significance	Overruled the Berubari position on the Preamble's status and tied the Preamble to the basic structure doctrine.

Illustration

If Parliament amended the Preamble to remove the word 'secular', courts (applying Kesavananda Bharati) could examine whether this damages the basic structure of the Constitution, since secularism has been held to be part of that structure, even though the Preamble can otherwise be amended like other parts of the Constitution.

Q2. Explain the concept of 'State' under Article 12 and the test for identifying instrumentalities of the State with reference to *Ajay Hasia v. Khalid Mujib Sehravardi*. Illustrate.

Principle: Article 12 defines 'State' to include the Government and Parliament of India, the Government and Legislature of each State, local authorities, and other authorities within the territory of India or under the control of the Government of India. This definition determines against whom Fundamental Rights can be enforced.

Ajay Hasia v. Khalid Mujib Sehravardi	
Citation	(1981) 1 SCC 722
Facts	The petitioners challenged the admission procedure of a regional engineering college run by a registered society, arguing that it violated their fundamental rights, and the threshold question was whether the society was 'State' under Article 12.
Issue	What tests determine whether a body, though not created directly by statute, is an instrumentality or agency of the State?
Held	The Supreme Court laid down several cumulative factors: whether the entire share capital/finance is provided by the Government, the extent of Government control over management, whether the functions performed are of public importance closely related to governmental functions, and whether a department of Government is transferred to the body. If these factors show deep and

	pervasive State control, the body is 'State' under Article 12, even if it is a society or company.
Significance	The leading test for identifying instrumentalities of the State, applied to public sector undertakings, universities, and similar bodies.

Illustration

A university is registered as a private society but receives almost all its funds from the State Government, and the Government appoints its governing council. Applying *Ajay Hasia*, the university would be treated as 'State' under Article 12, and its students could enforce fundamental rights (such as equality in admissions) directly against it.

Q3. Explain the doctrine of eclipse and the doctrine of severability under Article 13 with reference to *Bhikaji Narain Dhakras v. State of Madhya Pradesh* and *A.K. Gopalan v. State of Madras*. Illustrate.

Principle: Article 13(1) provides that all laws in force before the commencement of the Constitution, in so far as they are inconsistent with Part III, shall, to the extent of such inconsistency, be void. Courts have developed the doctrines of eclipse (for pre-Constitution laws) and severability to determine the effect of such inconsistency.

Bhikaji Narain Dhakras v. State of Madhya Pradesh	
Citation	AIR 1955 SC 781
Facts	A pre-Constitution law authorising the State to take over the motor transport business became inconsistent with the newly guaranteed right to carry on trade and business, but the Constitution was later amended to permit such State monopolies.
Issue	What happens to a pre-Constitution law that becomes inconsistent with a fundamental right, if the right is later curtailed by amendment?
Held	Such a law is not wiped out but remains eclipsed (dormant) to the extent of the inconsistency; if the relevant fundamental right is subsequently amended so as to remove the inconsistency, the law is freed from the shadow and becomes fully operative again, without needing to be re-enacted.
Significance	Established the doctrine of eclipse for pre-Constitution laws inconsistent with fundamental rights.

A.K. Gopalan v. State of Madras	
Citation	AIR 1950 SC 27
Facts	The petitioner, detained under the Preventive Detention Act, 1950, challenged the Act as violating his fundamental rights, and one issue was the effect of one void provision on the rest of the statute.

Issue	Does the invalidity of one provision of a statute make the entire statute void, or can the valid part be severed?
Held	The Court applied the doctrine of severability: only the offending provision, and not the whole Act, is void if the valid and invalid parts are severable and the legislature would have enacted the valid part even without the invalid part; if they are inextricably mixed, the whole statute falls.
Significance	Established the test of severability under Article 13, still applied to test the validity of statutes.

Illustration

A pre-Constitution statute nationalising a class of trade was inconsistent with Article 19(1)(g) as it stood, but is later validated because Article 19(6) is amended to permit State monopolies. Applying *Bhikaji Narain*, the old law revives without re-enactment. If a modern statute has nine valid sections and one section clearly violating Article 14, and the invalid section can be removed without disturbing the scheme of the Act, only that section is struck down, following the severability principle in *Gopalan*.

Q4. Explain the constitutional and statutory position on the acquisition and loss of Indian citizenship, with reference to *Louis De Raedt v. Union of India*. Illustrate.

Principle: Articles 5 to 11 lay down citizenship at the commencement of the Constitution, and Article 11 empowers Parliament to regulate citizenship by law, exercised through the Citizenship Act, 1955, which governs citizenship by birth, descent, registration, naturalisation and incorporation of territory, and its termination by renunciation, termination or deprivation.

Louis De Raedt v. Union of India	
Citation	(1991) 3 SCC 554
Facts	A foreign missionary who had lived in India for decades challenged an order for his deportation, claiming rights akin to those of a citizen because of his long residence.
Issue	Do foreign nationals enjoy the same fundamental rights as citizens, particularly regarding residence in India?
Held	The Supreme Court held that a foreigner's rights are limited to Article 21 (protection of life and personal liberty) and he does not enjoy rights conferred exclusively on citizens, such as the right to reside and settle in India under Article 19(1)(e); the Government's power to expel a foreigner is an exercise of sovereign power, subject only to the requirements of a fair procedure under Article 21.
Significance	Clarifies the distinction between rights available to citizens and to foreigners, relevant to citizenship law.

Illustration

A person born in India to Indian parents is a citizen by birth under Section 3 of the Citizenship Act, 1955. If she acquires the citizenship of another country by voluntary act, her Indian citizenship terminates automatically under Section 9 of that Act (and Article 9 bars a person who has voluntarily acquired the citizenship of a foreign State from being a citizen of India), unlike a long-term foreign resident, who never acquires citizenship merely through years of residence, as clarified by De Raedt.

Part C — 15 Marks Questions

- 1. Discuss the nature and salient features of the Indian Constitution. Is it federal or unitary, or a mixture of both?**

Key points: Written, lengthy, rigid-cum-flexible; parliamentary form; federal features (distribution of powers, independent judiciary) versus unitary features (single citizenship, all-India services, emergency powers); 'quasi-federal' characterisation (K.C. Wheare); S.R. Bommai on federalism as basic structure.

- 2. Discuss the significance of the Preamble to the Constitution of India and examine whether it is a part of the Constitution and amendable.**

Key points: Text of Preamble; sovereign, socialist, secular, democratic republic; justice, liberty, equality, fraternity; Berubari; Kesavananda Bharati; 42nd Amendment insertions.

- 3. Discuss the provisions relating to citizenship under Part II of the Constitution and the Citizenship Act, 1955.**

Key points: Articles 5-11; single citizenship; domicile; citizenship by birth, descent, registration, naturalisation, incorporation of territory; termination; overseas citizenship; recent amendments and controversies (mention neutrally).

- 4. Explain the definition of 'State' under Article 12 and the doctrine of judicial review as applied to test the validity of laws under Article 13.**

Key points: Article 12 tests (Ajay Hasia); 'law' and 'laws in force'; doctrine of eclipse; doctrine of severability; basis of judicial review in Articles 13, 32, 226 and 246; Marbury v. Madison influence; L. Chandra Kumar on judicial review as basic structure.

Unit-III: Right to Equality, Freedoms, and Personal Liberty

Part A — 5 Marks Questions

1. Explain the right to equality under Article 14 and the tests of reasonable classification.
2. Explain the doctrine of arbitrariness under Article 14.
3. Explain the prohibition of discrimination under Article 15.
4. Explain the scope of Article 16 relating to equality of opportunity in public employment.
5. Explain the abolition of untouchability under Article 17.
6. Explain the abolition of titles under Article 18.
7. Explain the freedoms guaranteed under Article 19(1) and the grounds of reasonable restriction.
8. Explain the protection against ex post facto laws under Article 20(1).
9. Explain the protection against double jeopardy under Article 20(2).
10. Explain the privilege against self-incrimination under Article 20(3).
11. Explain the right to education under Article 21A.
12. Explain the safeguards against arrest and preventive detention under Articles 22.

Part B — 10 Marks Questions (Case Law with Illustrations)

Q1. Explain the doctrine of reasonable classification and the new dimension of arbitrariness under Article 14 with reference to *State of West Bengal v. Anwar Ali Sarkar* and *E.P. Royappa v. State of Tamil Nadu*. Illustrate.

Principle: Article 14 guarantees equality before law and equal protection of laws. Classification is permissible if it is founded on an intelligible differentia which distinguishes persons grouped together from others left out, and the differentia has a rational nexus to the object sought to be achieved.

State of West Bengal v. Anwar Ali Sarkar	
Citation	AIR 1952 SC 75
Facts	A special law allowed the State Government to refer any case to a Special Court with a truncated procedure, without laying down any guiding principle for selecting which cases would be so referred.
Issue	Does unguided discretion to classify cases for a special, less protective procedure violate Article 14?
Held	The law was struck down because it gave uncontrolled discretion to the executive to pick cases for a special procedure, without any rational basis for distinguishing them from other similar cases, thus violating the classification test.
Significance	Established the classic two-part test of reasonable classification under Article 14.

E.P. Royappa v. State of Tamil Nadu	
Citation	(1974) 4 SCC 3
Facts	A senior IAS officer was transferred to a post considered lower in status, and he alleged that the transfer was actuated by mala fides and was arbitrary.
Issue	Is arbitrariness itself a violation of Article 14, independent of the classification test?
Held	Justice Bhagwati held that equality is a dynamic concept, and that Article 14 strikes at arbitrariness, since an arbitrary action is inherently unequal, both from the political and the constitutional point of view.
Significance	Introduced the 'new doctrine' that arbitrariness is antithetical to equality, later applied and refined in Maneka Gandhi v. Union of India.

Illustration

A State law imposes a special (harsher) trial procedure on 'any offence the Government thinks fit to refer', without stating any criterion. Applying Anwar Ali Sarkar, this fails the classification test. If a government officer is transferred without any valid administrative reason, purely to punish him for a personal disagreement with a minister, the transfer is arbitrary and can be struck down under the Royappa doctrine, even though there is no formal classification being made.

Q2. Explain the tests for reservation in public employment under Article 16 with reference to Indra Sawhney v. Union of India. Illustrate.

Principle: Article 16(4) enables the State to make provision for the reservation of appointments or posts in favour of any backward class of citizens which, in the opinion of the State, is not adequately represented in the services under the State.

Indra Sawhney v. Union of India	
Citation	1992 Supp (3) SCC 217 (Mandal Commission case)
Facts	The Central Government's decision to reserve 27 per cent of posts for socially and educationally backward classes, based on the Mandal Commission report, was challenged.
Issue	What are the permissible limits and criteria for reservation under Article 16(4)?
Held	The Supreme Court upheld the 27 per cent reservation, but laid down that total reservations (under Articles 15(4) and 16(4) together) ordinarily should not exceed 50 per cent except in extraordinary situations, that the 'creamy layer' among backward classes must be excluded, that reservation in promotions is not permissible (later modified by constitutional amendment), and that backward classes must be identified using both social and educational backwardness, not caste alone.

Significance	The leading authority on the scope and limits of reservation policy under Article 16(4), and the origin of the 50 per cent ceiling and creamy layer exclusion.
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Illustration

A State reserves 60 per cent of government jobs for backward classes without any extraordinary justification. Applying *Indra Sawhney*, courts would strike down the reservation to the extent it exceeds the 50 per cent ceiling, and would also require exclusion of the creamy layer among the beneficiaries.

Q3. Explain the interrelationship between Articles 14, 19 and 21 with reference to *Maneka Gandhi v. Union of India*. Illustrate.

Principle: Article 21 protects life and personal liberty except according to procedure established by law. The question is whether that procedure itself must be fair, just and reasonable, and how it interacts with Articles 14 and 19.

Maneka Gandhi v. Union of India	
Citation	(1978) 1 SCC 248
Facts	The petitioner's passport was impounded by the Government 'in the public interest' without giving her any reason or a hearing, under the Passports Act, 1967.
Issue	Does 'procedure established by law' under Article 21 mean any procedure enacted by the legislature, however arbitrary, or must it be fair and reasonable? Are Articles 14, 19 and 21 mutually exclusive?
Held	The Supreme Court overruled the narrow view taken in <i>A.K. Gopalan</i> and held that the procedure under Article 21 must be fair, just and reasonable, not arbitrary or oppressive, and that Articles 14, 19 and 21 are not mutually exclusive but form an integrated scheme, so that a law prescribing procedure for deprivation of life or liberty must also pass the tests of Articles 14 and 19. The passport authority was directed to give reasons and a post-decisional hearing.
Significance	Transformed Article 21 into a source of substantive due process in India, and is the foundation for the expansive reading of the right to life in later cases.

Illustration

The Government cancels a person's driving licence 'in public interest' without giving any hearing or stating reasons. Applying *Maneka Gandhi*, such an order would be invalid unless the person is given a fair opportunity to be heard (even if only after the order, in appropriate cases) and the procedure followed is shown to be just and reasonable, not merely authorised by some statute.

Q4. Explain the right to education and its enforcement with reference to Mohini Jain v. State of Karnataka and Unni Krishnan, J.P. v. State of Andhra Pradesh. Illustrate.

Principle: Before the insertion of Article 21A, courts read a right to education into Article 21, with varying scope, which later crystallised into a specific fundamental right for children of 6 to 14 years.

Mohini Jain v. State of Karnataka	
Citation	(1992) 3 SCC 666
Facts	A private medical college charged a 'capitation fee' far higher for students who did not qualify for a Government-allotted seat, and the petitioner challenged this as violating a right to education.
Issue	Is there a fundamental right to education under the Constitution, and does charging a capitation fee violate it?
Held	The Court held that the right to education flows from the right to life under Article 21 and is concomitant with the dignity of the individual, and that capitation fees amount to a sale of education, which is inconsistent with this right and with Article 14.
Significance	First recognised a broad right to education as part of Article 21.

Unni Krishnan, J.P. v. State of Andhra Pradesh	
Citation	(1993) 1 SCC 645
Facts	The correctness of Mohini Jain's broad ruling (which seemed to guarantee free education at all levels, including professional courses) was reconsidered.
Issue	To what extent and up to what age/level is the right to education a fundamental right?
Held	The Court held that the right to free education is available as a fundamental right only up to the age of 14, flowing from Article 21 read with the Directive Principle in Article 45 (as it then stood); beyond that age, the right to education is subject to the limits of the economic capacity of the State, though citizens have a right to establish/access educational institutions subject to reasonable regulation.
Significance	Refined Mohini Jain's ruling, and directly influenced the insertion of Article 21A by the 86th Amendment, later given effect through the Right of Children to Free and Compulsory Education Act, 2009.

Illustration

A government school refuses admission to a six-year-old child from a nearby slum on the ground of lack of capacity. Following Unni Krishnan and Article 21A (now a specific fundamental right,

enforced through the RTE Act, 2009), the child has an enforceable right to free and compulsory education up to the age of 14, and the authorities must accommodate her.

Q5. Explain the constitutional safeguards against preventive detention with reference to A.K. Gopalan v. State of Madras and Rekha v. State of Tamil Nadu. Illustrate.

Principle: Article 22 provides special safeguards for persons arrested (Article 22(1)-(2)) and additional safeguards where a person is preventively detained (Article 22(4)-(7)), balancing individual liberty against the State's power to detain a person without trial to prevent apprehended harm.

A.K. Gopalan v. State of Madras	
Citation	AIR 1950 SC 27
Facts	The petitioner was detained under the Preventive Detention Act, 1950, and challenged his detention as violating Articles 19, 21 and 22.
Issue	Does preventive detention, if it complies with Article 22, still need to satisfy Articles 19 and 21 independently?
Held	The Court (in its early, since-modified approach) held that Articles 19, 21 and 22 operate in mutually exclusive spheres, and that if a law of preventive detention satisfies the specific procedural safeguards of Article 22, it need not additionally satisfy Article 19 or the wider requirement of 'fair procedure' under Article 21 (a position later overturned by Maneka Gandhi's integrated approach).
Significance	Illustrates the earlier, narrower approach to personal liberty, since substantially modified.

Rekha v. State of Tamil Nadu	
Citation	(2011) 5 SCC 244
Facts	A person was preventively detained under a State law aimed at habitual offenders/'goondas', and the sufficiency of the grounds and the availability of ordinary criminal law remedies were examined.
Issue	When is resort to preventive detention (rather than ordinary criminal prosecution) justified?
Held	The Supreme Court held that preventive detention is a serious inroad into personal liberty and should be used only in exceptional cases where ordinary criminal law is not sufficient to deal with the situation; detention orders must be based on real, cogent grounds relevant to the statutory purpose and are subject to strict judicial scrutiny, in keeping with the modern, integrated reading of Articles 21 and 22.

Significance	Reflects the modern, rights-protective approach to preventive detention consistent with Maneka Gandhi.
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Illustration

A person who has merely been involved in one minor scuffle is detained under a preventive detention law meant for habitual dangerous criminals, without any real material showing a threat to public order. Following *Rekha v. State of Tamil Nadu*, such detention would be quashed as an unjustified resort to preventive detention where ordinary criminal prosecution would suffice, and the detaining authority must supply grounds of detention promptly and afford the earliest opportunity to make a representation, as required by Article 22(5).

Part C — 15 Marks Questions

1. **Discuss the right to equality guaranteed under Articles 14 to 18 of the Constitution. Explain the tests evolved by courts to determine violation of Article 14.**

Key points: Article 14 concept; reasonable classification test; new doctrine of arbitrariness; Articles 15, 16, 17, 18; *Anwar Ali Sarkar*; *Royappa*; *Indra Sawhney*; *Maneka Gandhi*.

2. **Discuss the freedoms guaranteed under Article 19(1) and the grounds on which reasonable restrictions can be imposed on them.**

Key points: Six freedoms (speech, assembly, association, movement, residence, profession); restrictions under 19(2)-(6); test of reasonableness; balance between individual liberty and public interest; illustrative case law.

3. **Discuss the protections available to a person accused of an offence under Article 20, and safeguards against arrest and detention under Articles 21 and 22.**

Key points: Ex post facto laws (20(1)); double jeopardy (20(2)); self-incrimination (20(3)); Article 21 and procedure established by law; *Maneka Gandhi*; Article 22 safeguards on arrest; preventive detention; *Rekha v. State of Tamil Nadu*.

4. **Discuss the right to life and personal liberty under Article 21 and trace its expansive judicial interpretation.**

Key points: Gopalan's narrow view; *Maneka Gandhi*'s due process turn; right to livelihood, privacy, healthy environment, speedy trial, education, shelter, legal aid; *K.S. Puttaswamy* on privacy; Article 21A.

Unit-IV: Rights Against Exploitation, Religion, Culture, Constitutional Remedies and Limitations

Part A — 5 Marks Questions

1. Explain the prohibition of traffic in human beings and forced labour under Article 23.
2. Explain the prohibition of employment of children in hazardous work under Article 24.
3. Explain the freedom of conscience and free profession, practice and propagation of religion under Article 25.
4. Explain the freedom to manage religious affairs under Article 26.
5. Explain the freedom from taxes for promotion of a religion under Article 27.
6. Explain the freedom from attending religious instruction under Article 28.
7. Explain the cultural and educational rights under Articles 29 and 30.
8. Explain the significance of Article 32 as a fundamental right.
9. Explain the writs available under Articles 32 and 226.
10. Explain the scope of Article 31A relating to agrarian reform laws.
11. Explain the object of Article 31B and the Ninth Schedule.
12. Explain Articles 358 and 359 in relation to the effect of Emergency on Fundamental Rights.

Part B — 10 Marks Questions (Case Law with Illustrations)

Q1. Explain the constitutional test for distinguishing religious practice from secular activity with reference to Commissioner, Hindu Religious Endowments, Madras v. Sri Lakshmindra Thirtha Swamiar of Sri Shirur Mutt. Illustrate.

Principle: Articles 25 and 26 protect religious belief and practices that are essential and integral to a religion, but do not protect purely secular activities merely because they are associated with religious practice, and are subject to public order, morality, health and other fundamental rights.

Commissioner, Hindu Religious Endowments, Madras v. Sri Lakshmindra Thirtha Swamiar of Sri Shirur Mutt	
Citation	AIR 1954 SC 282
Facts	A statute regulating the administration of religious endowments (maths) was challenged by the head of a math as interfering with the freedom of religion under Articles 25 and 26.
Issue	What is the test for deciding whether a particular practice is protected as an essential part of religion?
Held	The Supreme Court held that what constitutes an essential part of a religion is to be determined with reference to the doctrines of that religion itself, and that secular activities associated with religious practices (such as administration of property) can be regulated by law, even though religious practices proper are protected, subject to public order, morality and health, and other provisions of Part III.

Significance	Originated the 'essential religious practices' test, still used (with debate) to decide the scope of Articles 25 and 26.
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Illustration

A State law requires that the accounts of temple trusts be regularly audited by government auditors. This is a regulation of a secular (administrative) aspect and does not violate Article 26(d), following the Shirur Mutt test, even though it applies to a religious institution, because managing property is not itself an essential religious practice.

Q2. Explain the scope of Article 32 as a fundamental right to constitutional remedies with reference to **L. Chandra Kumar v. Union of India**. Illustrate.

Principle: Article 32 itself guarantees the right to move the Supreme Court for enforcement of Fundamental Rights, and Dr. Ambedkar called it the 'heart and soul' of the Constitution. Courts have held that the power of judicial review under Articles 32 and 226 is itself part of the basic structure.

L. Chandra Kumar v. Union of India	
Citation	(1997) 3 SCC 261
Facts	Constitutional amendments had created administrative and other tribunals and sought to exclude the jurisdiction of High Courts under Article 226/227 over matters assigned to such tribunals, and the validity of this exclusion was challenged.
Issue	Can the judicial review jurisdiction of the High Courts and Supreme Court be wholly excluded in favour of tribunals?
Held	The Supreme Court held that the power of judicial review vested in the High Courts under Article 226/227 and in the Supreme Court under Article 32 is part of the basic structure of the Constitution and cannot be ousted, though tribunals can act as courts of first instance, subject to further judicial review by the High Courts.
Significance	Confirmed that the writ jurisdiction under Articles 32 and 226, being part of the basic structure, cannot be taken away even by constitutional amendment.

Illustration

If Parliament passed a law setting up a tribunal for service matters and completely barred any further appeal or review by the High Courts, that exclusion would be unconstitutional following *L. Chandra Kumar*, because the supervisory judicial review power of the High Courts cannot be entirely removed.

Q3. Explain the scope of protection under Article 31A for agrarian reform legislation with reference to *State of Bihar v. Kameshwar Singh*. Illustrate.

Principle: Article 31A protects laws providing for the acquisition of estates and related agrarian reform from challenge on the ground that they are inconsistent with, or take away, the rights conferred by Article 14 or 19, so as to enable land reform to proceed without being stalled by constitutional challenges from erstwhile zamindars and landholders.

State of Bihar v. Kameshwar Singh	
Citation	AIR 1952 SC 252
Facts	The Bihar Land Reforms Act, 1950, which abolished the zamindari system and provided compensation to zamindars on a graded scale, was challenged as violating the fundamental right to property and as being discriminatory.
Issue	Is a zamindari-abolition law valid, especially regarding the adequacy and mode of compensation?
Held	Part of the Act (the provision of unequal compensation for similarly situated zamindars) was struck down as violating equality, and this decision, along with similar cases, prompted the First Constitutional Amendment, which inserted Article 31A (and the Ninth Schedule/31B) to protect agrarian reform laws from being invalidated on Article 14/19 grounds.
Significance	The immediate trigger for the insertion of Articles 31A and 31B, illustrating the tension between land reform and property rights that these provisions were designed to resolve.

Illustration

A State passes a law abolishing intermediary tenures and vesting land in the actual cultivators, providing for compensation on a formula that differs from ordinary market value. Under Article 31A, such a law cannot be challenged merely because the compensation is less than market value or because it treats different classes of landholders differently, as land reform legislation is specially protected.

Q4. Explain the object and scope of Article 31B and the Ninth Schedule with reference to *I.R. Coelho v. State of Tamil Nadu*. Illustrate.

Principle: Article 31B, along with the Ninth Schedule, was intended to give complete immunity to specified laws from challenge on the ground of inconsistency with any fundamental right, but this blanket immunity has since been qualified by the basic structure doctrine.

I.R. Coelho v. State of Tamil Nadu	
Citation	(2007) 2 SCC 1
Facts	A Tamil Nadu land ceiling law had been placed in the Ninth Schedule, and the question was whether laws inserted into the Ninth Schedule after the

	Kesavananda Bharati judgment (24 April 1973) enjoyed unqualified immunity from judicial review.
Issue	Is a law placed in the Ninth Schedule after 1973 automatically immune from challenge, even if it violates fundamental rights forming part of the basic structure?
Held	The Supreme Court, by a nine-judge bench, held that laws inserted in the Ninth Schedule after 24 April 1973 are not automatically immune, and are open to challenge on the ground that they, or Article 31B's application to them, damage the basic structure, including by violating fundamental rights that form part of it (such as Articles 14, 19 and 21, tested through the 'rights test' and the 'essence of the right' test).
Significance	Curtailed the previously understood blanket immunity of Article 31B/Ninth Schedule laws, subjecting them to basic structure review.

Illustration

If a State law expropriating property without any hearing or compensation whatsoever were placed in the Ninth Schedule after 1973, it would still be open to challenge, following *I.R. Coelho*, on the ground that it destroys the essence of fundamental rights forming part of the basic structure, even though it is nominally protected by Article 31B.

Part C — 15 Marks Questions

1. **Discuss the rights against exploitation guaranteed under Articles 23 and 24, and the right to freedom of religion under Articles 25 to 28.**

Key points: Traffic in human beings, begar and forced labour; child labour prohibition; secular v. religious activity (Shirur Mutt); essential religious practices; management of religious affairs; taxation and religious instruction; landmark cases (Sabarimala reference neutrally, if relevant).

2. **Discuss the cultural and educational rights guaranteed under Articles 29 and 30, and the right to constitutional remedies under Article 32.**

Key points: Minority rights to conserve language/script/culture; right to establish and administer educational institutions; TMA Pai Foundation (mention); Article 32 as heart and soul (Ambedkar); writs; L. Chandra Kumar.

3. **Discuss the limitations on Fundamental Rights under Articles 31A, 31B and 31C, and examine their interaction with the basic structure doctrine.**

Key points: First Amendment background; Kameshwar Singh; Article 31A protections; Ninth Schedule/31B; I.R. Coelho; Article 31C and Minerva Mills; balance between social reform and rights.

4. **Discuss the effect of a Proclamation of Emergency on Fundamental Rights under Articles 358 and 359.**

Key points: National, State and Financial Emergency (Articles 352, 356, 360, cross-reference); automatic suspension of Article 19 under 358 (as amended by 44th Amendment); Presidential Order suspending enforcement of other rights under 359; ADM Jabalpur v. Shivakant Shukla and its later disapproval; 44th Amendment safeguards (Articles 20 and 21 cannot be suspended).

Unit-V: Directive Principles of State Policy and Fundamental Duties

Part A — 5 Marks Questions

1. Explain the meaning and significance of Directive Principles of State Policy.
2. Explain the nature of Directive Principles as non-justiciable but fundamental in governance.
3. Classify the Directive Principles under different heads (socialistic, Gandhian, liberal-intellectual).
4. Explain Article 39 and its significance for economic justice.
5. Explain Article 44 relating to a Uniform Civil Code.
6. Explain Article 45 and Article 21A relating to education.
7. Explain Article 48A relating to protection of environment.
8. Explain the harmonious construction of Fundamental Rights and Directive Principles.
9. Explain the significance and enforceability of Fundamental Duties under Article 51A.
10. Explain the recommendations of the Swaran Singh Committee on Fundamental Duties.

Part B — 10 Marks Questions (Case Law with Illustrations)

Q1. Explain the relationship between Fundamental Rights and Directive Principles of State Policy with reference to State of Madras v. Champakam Dorairajan and Minerva Mills Ltd. v. Union of India. Illustrate.

Principle: Directive Principles under Part IV are 'fundamental in the governance of the country' but are not enforceable in a court (Article 37). Courts have had to work out how far Directive Principles can qualify or be harmonised with the enforceable Fundamental Rights under Part III.

State of Madras v. Champakam Dorairajan	
Citation	AIR 1951 SC 226
Facts	A government order fixed communal quotas for admission to medical and engineering colleges, purportedly to promote the education of backward communities, a Directive Principle-type objective, but this conflicted with Article 29(2).
Issue	Can a Directive Principle override a Fundamental Right?
Held	The Supreme Court held that Directive Principles must conform to and run subsidiary to Fundamental Rights, and cannot override them; the communal quota order violated Article 29(2) and was struck down. This decision led directly to the First Amendment, inserting Article 15(4).
Significance	Established the early position that Fundamental Rights prevail over Directive Principles in case of conflict, prompting subsequent amendments to accommodate social justice goals.

Minerva Mills Ltd. v. Union of India	
Citation	(1980) 3 SCC 625
Facts	The 42nd Amendment had, among other things, given Directive Principles (Article 31C, as extended) overriding primacy over Articles 14 and 19, discussed in Unit III/IV.
Issue	Can Directive Principles be given absolute primacy over all Fundamental Rights?
Held	The Court held that the Indian Constitution is founded on the bedrock of a balance between Fundamental Rights and Directive Principles, and giving Directive Principles unqualified primacy over all Fundamental Rights would disturb the harmony that is itself part of the basic structure; hence, the extension of Article 31C to cover all Directive Principles was struck down.
Significance	Established that the balance/harmony between Parts III and IV is itself part of the basic structure, not to be tilted absolutely in favour of either.

Illustration

A State reserves all medical college seats for one community, citing an intent to uplift it under a Directive Principle-style objective, but without a valid constitutional basis. Following Champakam Dorairajan (as later modified by the specific enabling provisions such as Article 15(4)), the reservation would fail unless supported by a specific constitutional provision, and following Minerva Mills, no directive principle can be given absolute primacy that entirely eclipses fundamental rights.

Q2. Explain the judicial technique of harmonious construction between Fundamental Rights and Directive Principles with reference to Unni Krishnan, J.P. v. State of Andhra Pradesh and Olga Tellis v. Bombay Municipal Corporation. Illustrate.

Principle: Rather than treating Fundamental Rights and Directive Principles as always in conflict, courts have increasingly used Directive Principles as an aid to interpret the content of Fundamental Rights, especially Article 21, reading many Directive Principles' goals into the right to life.

Olga Tellis v. Bombay Municipal Corporation	
Citation	(1985) 3 SCC 545
Facts	Pavement dwellers challenged their proposed eviction by the Municipal Corporation, arguing that eviction from their pavement dwellings, close to their place of work, would deprive them of their livelihood and hence their right to life.
Issue	Does the right to life under Article 21 include the right to livelihood?

Held	The Supreme Court held that the right to life includes the right to livelihood, since no person can live without the means of living; while this did not make eviction impossible, it required that any eviction be carried out fairly, with due notice and in accordance with law, drawing support from the Directive Principles relating to the right to work and adequate means of livelihood (Article 39).
Significance	Used a Directive Principle to expand the meaning of a Fundamental Right, exemplifying harmonious construction.

Unni Krishnan, J.P. v. State of Andhra Pradesh	
Citation	(1993) 1 SCC 645
Facts	As discussed in Unit III, the case examined whether there is a fundamental right to education.
Issue	Can a Directive Principle (Article 45, as it then stood, on free and compulsory education for children) be read into a Fundamental Right?
Held	The Court read Article 45 (a Directive Principle) together with Article 21 to hold that children up to 14 years have a fundamental right to free education, illustrating how Directive Principles can inform and expand the content of a Fundamental Right through harmonious construction.
Significance	A leading example of Directive Principles being used to give concrete content to Article 21, later solidified by the insertion of Article 21A.

Illustration

A group of daily-wage workers living in a slum face demolition of their homes without notice. Citing *Olga Tellis*, a court would likely direct that eviction can occur only after fair notice and in a manner that considers alternate arrangements, since forcibly removing them without any process would infringe their right to livelihood under Article 21, informed by the Directive Principle in Article 39.

Q3. Explain the enforceability and judicial use of Fundamental Duties with reference to *AIIMS Students' Union v. AIIMS*. Illustrate.

Principle: Article 51A, inserted by the 42nd Amendment on the recommendation of the Swaran Singh Committee, lists Fundamental Duties of citizens. Though not directly enforceable by courts against citizens, they have interpretive value and can inform the reasonableness of restrictions on rights and the validity of laws/policies.

AIIMS Students' Union v. AIIMS	
Citation	(2001) 6 SCC 465
Facts	A challenge was made to an institutional reservation policy giving preference to the wards of AIIMS employees for admission, and the argument was made, among others, on the basis of Fundamental Duties and social justice objectives.
Issue	Can Fundamental Duties be used to justify or test the validity of institutional policies restricting equality in admissions?
Held	The Supreme Court struck down the institutional reservation as unconstitutional, observing, among other things, that fundamental duties, though not directly enforceable, are relevant in interpreting constitutional provisions and testing the reasonableness of a classification, and that they must be read to promote, not defeat, values like equality and non-discrimination.
Significance	Illustrates that Fundamental Duties, although non-justiciable in the sense of not being independently enforceable, are used by courts as an interpretive aid.

Illustration

A private engineering college reserves half its seats exclusively for children of its own staff, without any rational basis connected to merit or backwardness. A court, drawing on the values reflected in Fundamental Duties (such as Article 51A(j), to strive for excellence) alongside Article 14, may strike down such a policy as arbitrary and inconsistent with constitutional values, even though Article 51A cannot by itself be directly enforced against the college.

Part C — 15 Marks Questions

- Discuss the significance, nature and classification of the Directive Principles of State Policy. Are they merely 'pious wishes' or do they have real constitutional force?**

Key points: Article 37; non-justiciable but fundamental in governance; classification (economic/socialistic, Gandhian, liberal-intellectual, international); examples of each; growing judicial reliance despite non-justiciability.

- Discuss the relationship between Fundamental Rights and Directive Principles of State Policy, tracing the judicial evolution from Champakam Dorairajan to Minerva Mills.**

Key points: Early primacy of rights (Champakam Dorairajan); shift via Golaknath, Kesavananda; Article 31C; Minerva Mills' balance doctrine; modern harmonious construction (Olga Tellis, Unni Krishnan); rights and principles as complementary.

3. Discuss the significance, enforceability and judicial interpretation of Fundamental Duties under Article 51A.

Key points: 42nd Amendment; Swaran Singh Committee; list of 11 (now with environment, education of ward) duties; non-justiciable directly; use as interpretive aid; Ranganath Misra Committee recommendations (mention); AIIMS Students' Union case; possible role in citizen responsibility discourse.

4. Critically examine the application and judicial interpretation of selected Directive Principles, such as Articles 39, 44, 45 and 48A.

Key points: Article 39 and economic justice/PILs; Article 44 and Uniform Civil Code debate (Shah Bano background, Sarla Mudgal); Article 45/21A and right to education; Article 48A and environmental jurisprudence (cross-reference to Environmental Law paper); ongoing constitutional debates.